

Data Controller (95.7%), Legal Basis (94.9%), Non-Personal Data (97.4%), Personal Data (96.1%), Required Purpose (94.3%), Technical Measure (62.8%):

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Consent (85.1%), Data Controller (98.1%), Data Subject (94.5%), Non-Personal Data (76.8%), Personal Data (99.8%), Processing (99.6%), Required Purpose (69.2%), Technical Measure (75.2%):

Download the app [Install/Host chargers](#) [Electrify my fleet](#) [Provide subscriptions/vouchers](#) [Level 8, 473 Bourke Street, Melbourne, VIC 3000](#) [Get in touch](#) [Login](#) [Chargefox Privacy Policy](#) Last updated October 13, 2023 Chargefox Pty Ltd ACN 621 161 215 (referred to as Chargefox, we, us or our) has implemented this Privacy Policy to provide you with information about how we collect, hold and use Personal Information and Customer Data: through Chargefoxas open-platform network of electric vehicle charging stations (Charging Stations), to which owners of electric vehicles (EVs) may connect in order to charge their EV, and all support network infrastructure and services supplied by Chargefox in respect of the Charging Stations (Chargefox Network); through the Chargefox apps which provide data in respect of the Chargefox Network (Chargefox Apps); and on the Chargefox website (chargefox.com) (Website).

Legal Basis (88.8%), Personal Data (92.1%):

We are committed to the protection of your Personal Information in accordance with the Privacy Act 1988 (Cth) (as amended from time to time) (Privacy Act) and the Australian National Privacy Principles set out in the Privacy Act (Privacy Principles).

Legal Basis (72.1%):

We may, from time to time, review and update this Privacy Policy including, to take into account new laws, regulations and technology.

Personal Data (99.3%), Processing (98.7%):

Personal Information collected may include (but is not limited to) the following: (a) A name, postal, billing, email and social media (e.g.

Personal Data (99.6%), Processing (99.1%), Required Purpose (66.0%):

Facebook) addresses; (b) A contact details including telephone numbers (landline, mobile and fax); (c) A driver's licence details and car registration information; (d) A payment details; and (e) A certain information about how an individual uses our Chargefox Network.

Non-Personal Data (93.3%):

Customer Data collected may include (but is not limited to) the following: (f) A details about vehicles using our Charging Stations; (g) A the charging capacity of vehicles using our Charging Stations; and (h) A usage frequency and locational trends of vehicles using our Charging Stations.

Required Purpose (96.0%):

2 When and why we collect Personal Information 2.1 A We collect your Personal Information to manage our relationship with you and perform functions and activities relating to our business as further described in clause 5.

Consent (62.3%), Personal Data (99.5%), Required Purpose (69.2%), Retention (79.7%):

2.2 A We may collect Personal Information such as your name, email contact details, billing and delivery addresses, and payment details when you: (a) A register an account for use of our Chargefox Network, Chargefox Apps or Website; (b) A access or use our Chargefox Network, Chargefox Apps or Website; (c) A request information about us, our products or services; (d) A request technical support or assistance; (e) A provide feedback or make new service requests; (f) A fill in a form relating to our Chargefox Network, Chargefox Apps or available on our Website; or (g) A contact us by telephone, email, through social media such as Facebook, post or in person.

Processing (98.9%):

Use of Charging Stations 3.2 A When you connect your EV to a Charging Station or otherwise use the Chargefox Network, the Charging Stations may collect and generate information about you.

Processing (99.4%):

This information will be stored by or on behalf of Chargefox and accessible to us via the software supporting the Chargefox Network service.

Non-Personal Data (95.8%), Processing (62.4%):

3.3 A The information collected by Charging Stations will include, for example, the Charging Stations you use, the amount and type of services you obtain from each Charging Station, and other information regarding your use of our services.

Required Purpose (94.1%):

We may associate this information with your account and other Personal Information we hold about you, for example in order to bill you for your use of the Charging Stations.

Recipient (62.6%), Third Party (93.4%):

3.4 A When you connect your EV to a Charging Station or otherwise use the Chargefox Network, Chargefox may also collect, on behalf of itself and/or its business partners, non-personally identifying Customer Data relating to usage of Charging Stations.

Processing (99.2%), Third Party (97.6%):

All such information may be shared by Chargefox with third parties in Chargefox's sole and absolute discretion.

Required Purpose (95.4%):

Location-Based Services 4.2 A Chargefox's Chargefox Apps may offer location-based search services to help you identify Charging Stations within the Chargefox Network.

Non-Personal Data (74.1%), Personal Data (94.9%):

This information may include your geographic location and the other information you specify in connection with your search, as well as the Charging Stations you locate using your search.

Personal Data (97.7%):

The geographic location information may reveal your exact current location to Chargefox (if, for example, you send Chargefox your GPS coordinates or other precise location information).

Personal Data (94.9%):

4.3 A Chargefox may share your location with third parties as part of these location-based services.

Required Purpose (91.4%), Third Party (95.6%):

For example, Chargefox may share your location with a third party to create a map or provide directions to nearby Charging Stations within our Chargefox Network.

Non-Personal Data (71.4%), Required Purpose (91.5%):

Click Stream Data 4.4 A When you visit and browse our Chargefox Apps or Website, our Chargefox App/Website host may collect information for statistical, reporting and maintenance purposes.

Non-Personal Data (79.4%), Personal Data (87.0%):

The information may include: (a) A the number of users visiting our Chargefox App/Website and the number of pages viewed; (b) A the date, time and duration of a visit; (c) A the IP address of your computer or other device; or (d) A the path taken through our Chargefox Apps/Website.

Processing (95.4%), Required Purpose (98.2%), Technical Measure (98.6%):

4.7 A We may use Google Analytics to help analyse how you use our Website.

Non-Personal Data (68.9%), Processing (99.4%), Technical Measure (99.1%):

Google Analytics generates statistical and other information about website use by means of cookies, which are stored on users' computers.

Processing (98.1%), Required Purpose (98.6%):

The information generated is used to create reports about the use of the Website.

Processing (92.4%):

4.5 A Subject to clause 8.3, the information collected by our Chargefox App/Website host will not be used to identify you.

Not Required Purpose (91.5%), Personal Data (99.3%):

We will not (and will not allow any third party to) use Google Analytics to track or to collect any personally identifiable information of visitors to our Website.

Not Required Purpose (75.4%), Personal Data (81.0%), Technical Measure (67.6%):

We will not associate any data gathered from this Website with any personally identifying information from any source as part of our use of Google Analytics.

Non-Personal Data (90.6%), Processing (99.2%), Technical Measure (91.0%):

Cookies 4.9 A Cookies are small text files that are transferred to a user's computer hard drive by a website for the purpose of storing information about a user's identity, browser type or website visiting patterns.

Personal Data (63.6%):

a Personal Information is information or an opinion, whether true or not, and whether recorded in a material form or not, about an individual whose identity is apparent, or can reasonably be ascertained.

Technical Measure (77.4%):

Cookies may be either a persistent or a session cookies.

Retention (89.3%):

A persistent cookie will be stored on the user's computer and will remain valid until its set expiry date, unless deleted by the user before then.

Retention (80.4%):

A session cookie, on the other hand, will expire at the end of the user session, when the internet browser is closed.

Technical Measure (85.9%):

Our Website uses session cookies but also persistent cookies for Google Analytics.

Consent (97.8%):

4.11 You can adjust your internet browser to disable cookies, or you can delete cookies already stored on your computer, however we may not be able to provide you with all the service or functionality you require on our Website if you choose to do so.

Data Source (70.2%), Required Purpose (98.9%), Third Party (62.4%):

5 How we use the Personal Information we collect about you 5.1 We use the Personal Information we collect about you for our business functions and activities, which may include the following: (a) to communicate with you and provide you with information, products or services you have requested, via the Chargefox Network, Chargefox Apps, Website or otherwise; (b) to manage and administer your account including in relation to your subscription, use of the Chargefox Network, use of the Chargefox Apps or Website or to answer any enquiries you may have about your account; (c) to promote and market our products and services to you; (d) to arrange for services to be provided by third parties; (e) to personalise and customise your experiences on our Chargefox Network, Chargefox Apps or Website; (f) to help us research the needs of our customers, and to gain a better understanding of your needs and the needs of customers generally; (g) to conduct research for the purposes of improving our services, creating new services or updating the product provided via our Chargefox Network, Chargefox Apps or Website; (h) to conduct research, data analytics and other reasonable activities on behalf of our business partners, such as EV original equipment manufacturers and automobile clubs, including in relation to usage and demographic trends of EVs and the Chargefox Network; and (i) for internal operations, such as record keeping and data analytics.

Legal Basis (93.5%):

5.2 We may be also disclose your Personal Information if we are required to do so by law.

Required Purpose (74.3%):

5.3 We may collect and use your Personal Information for other purposes not listed above.

Personal Data (98.6%):

If we do so, we will make it known to you at the time we collect or use your Personal Information.

Required Purpose (85.4%):

5.5 If you choose not to provide your Personal Information to us for the purposes set out in this Privacy Policy, we may not be able to undertake certain activities for you such as providing you with requested information, products or services.

Non-Personal Data (96.2%), Processing (99.3%), Required Purpose (87.1%):

6 How we use the Customer Data we collect about you 6.1 We use the non-identifiable Customer Data we collect about you for our business functions and activities, which may include the following: (a) collecting information and aggregate data on Chargefox Network services, current usage activities or trends and charging capacities at each Charging Station; (b) carrying out research and analysis of the behaviour of our customers; and (c) developing processes, products, services and benefits to better meet customersa needs.

Recipient (79.4%), Required Purpose (76.6%):

6.2 We may provide Customer Data to our business partners (including EV original equipment manufacturers and automobile clubs), agents, contractors, service providers or related companies for the purposes of, or in connection with, the supply of services to you and for the same purposes above.

Required Purpose (85.3%):

6.3 You agree that Chargefox may use and analyse your Customer Data as required, including for the purpose of improving the Chargefox Network and including your Customer Data in aggregated anonymous databases.

Legal Basis (80.5%), Recipient (66.9%), Required Purpose (80.4%), Third Party (69.6%):

7 To whom we disclose your Personal Information 7.1 In order to carry out the above purposes, we may disclose your Personal Information to third parties that provide products and services to or through Chargefox (including third party couriers), our business partners (including EV original equipment manufacturers and automobile clubs), suppliers, distributors, vendors, financial institutions, our professional advisors, and other parties to whom we are authorised or required by law to disclose information.

Processing (73.9%), Third Party (84.1%):

7.3 The nature of the Internet means that some of your Personal Information may be transferred, stored, processed or used overseas by us or by third party service providers.

Consent (96.9%), Processing (97.9%), Scale Non-EU (86.9%):

You consent to the collection, use, storage, and processing of your Personal Information outside of Australia.

Processing (97.9%), Required Purpose (92.4%):

7.4 In connection with any use of Google Analytics by us, Personal Information may be disclosed to an entity or entities overseas where Google's servers are located, where it will be stored solely for the purposes described in this Privacy Policy.

Required Purpose (99.8%):

8 Marketing 8.1 We may use your Personal Information to provide you with marketing material about us, our services, or products that we think may be of interest to you.

Data Subject (63.0%):

3 Information collected via our Chargefox Network 3.1 We will not collect any Personal Information about users of our Chargefox Network except when they knowingly provide it or as otherwise described below.

Legal Basis (91.1%):

8.3 Unless otherwise specified in this Privacy Policy, we or our Website/Chargefox App host will not disclose any of your Personal Information to any other organisation unless the disclosure is required by law or is otherwise permitted by the Privacy Principles.

Right (70.4%):

9 Finding out what Personal Information we hold about you 9.1 You are entitled to access Personal Information that we hold about you.

Consent (68.5%):

If you request access to your Personal Information, we will grant your request unless providing you with access would unreasonably impact upon the privacy of others or is not otherwise permitted under the Privacy Principles.

Processing (88.1%), Required Purpose (60.2%):

10 Updating, storage and security of Personal Information held by us 10.1 We aim to keep your Personal Information secure and up to date.

Technical Measure (81.8%):

Any Personal Information collected via our Chargefox Network, Chargefox Apps or Website or which is held on our systems, is protected by safeguards including physical, technical (eg firewalls, SSL encryptions etc) and procedural methods.

Processing (78.7%):

All Personal Information held by us will be governed by our most recent Privacy Policy, posted on our Website.

Art. 17 Right to erasure (right to be forgotten) (68.7%):

10.3 If we find that we have no further need for your Personal Information we may remove it from our systems and destroy all record of it.

Personal Data (89.6%):

10.4 You can update your contact and Personal Information at any time by contacting Chargefox as specified in clause 12 or alternatively through the aAccount Informationa functionality in the Chargefox Apps or the Website (if applicable).

Organisational Measure (72.2%):

We welcome notification of changes to your details so we can keep our records up to date.

Legal Basis (96.7%), Processing (66.1%):

11 International Use and your Personal Information We make no representation or warranty that your Personal Information will be collected, held and used by us other than in accordance with

Privacy Principles set out in the Privacy Act.

Legal Basis (93.5%):

If you choose to access the Chargefox Apps or Website from locations outside of Australia, you do so at your own risk and such access will be subject to the laws of Australia.

Authority (79.1%):

If you do not consider our response satisfactory, you may contact the Office of the Australian Information Commissioner.

Data Controller (99.4%):

13 MailChimp Privacy Chargefox uses MailChimp to provide electronic newsletters to subscribers.

Personal Data (99.8%), Processing (89.7%), Required Purpose (83.4%):

In distributing newsletters, MailChimp will collect personal information from you, including email addresses you have provided to Chargefox for the purpose of receiving electronic updates, and all information relating to those email addresses.

Technical Measure (99.1%):

MailChimp also uses cookies, web beacons and Flash player codes to collect information about when you access the Chargefox electronic newsletters; your browser type and version; your operating system and other similar information.

Required Purpose (99.3%):

MailChimp will use the information collected from you for the purpose of hosting the online platform to enable Chargefox to create, send and manage electronic newsletters.

Processing (82.9%), Scale Non-EU (79.4%):

Your information (including your IP address) will be transmitted to and stored by MailChimp on servers located outside Australia.

Legal Basis (61.8%), Processing (63.2%):

By signing up to electronic newsletters about network updates, partnerships and deals, you consent to your personal information being collected, used and disclosed as set out in these terms and conditions, and in MailChimpas Privacy Policy and Terms of Use; consent to your personal information being sent and stored overseas, and acknowledge that Australian Privacy Principle 8.1 contained in Schedule 1 to the Privacy Act 1988 (Cth) will not apply to the use of the information; acknowledge that MailChimp is not subject to the Privacy Act 1988 (Cth) and you will not be able to seek redress under the Privacy Act 1988 (Cth) for any privacy breaches by MailChimp but will need to seek redress under the laws of the USA.

Legal Basis (77.1%):

MailChimp is based in the United States of America (USA) and is subject to the laws of the USA.

Consent (84.2%):

You can unsubscribe from the Chargefox electronic newsletter at any time by selecting the unsubscribe option in every email sent to you by MailChimp.

Personal Data (96.7%):

If you have any questions or concerns relating to the use of your personal data please contact info@chargefox.com 14 Active Campaign Privacy Chargefox uses Active Campaign to manage communications with subscribers.

Required Purpose (96.9%):

Active Campaign will use the information collected from you for the purpose of hosting the online platform to enable Chargefox to create, send and manage electronic communications.

Legal Basis (92.7%):

Active Campaign contractually agrees to process personal information in compliance with all applicable privacy laws, including the Australian Privacy Act (please see Section 3(b)).